Rod M. Fliegel, Bar No. 168289
rfliegel@littler.com
LITTLER MENDELSON, P.C.
101 Second Street, Suite 1000
San Francisco, California 94105
Telephone: 415.433.1940
Facsimile: 415.399.8490

Karimah J. Lamar, Bar No. 246862
klamar@littler.com
Christine Fitzgerald, Bar No. 259014
cfitzgerald@littler.com
Robert Geiger, Bar No. 322914
rgeiger@littler.com
LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
Telephone: 619.232.0441
Facsimile: 619.232.4302

Attorneys for Defendant
THE VONS COMPANIES, INC.

LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

SOUTHERN DIVISION

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated,

Plaintiff,

v.

THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT; and DOES 1-5,

Defendants.

Case No. 8:25-cv-00191-SRM-KES

DECLARATION OF KARIMAH J. LAMAR IN SUPPORT OF DEFENDANT THE VONS COMPANIES, INC'S OPPOSITION TO PLAINTIFF'S MOTION FOR CLASS CERTIFICATION

Date: April 15, 2026
Time: 1:30 p.m.

Trial Date: Not Yet Set
Complaint Filed: February 6, 2025

I, Karimah J. Lamar, declare as follows:

1. I am an attorney licensed to practice before this Court and am an attorney with the law firm of Littler Mendelson, P.C. in San Diego and represent Defendant The Vons Companies, Inc. (hereinafter "Vons") in this matter. I have personal knowledge of the facts stated herein, except such facts that are made upon information and belief. Further, if called and sworn as a witness, I could and would competently testify hereto.

Exhibits

2. On August 29, 2025, my office served Responses to Plaintiff's Requests for Production of Documents and produced documents, Bates No. Vons (Carrillo) 000001 – 120. Attached as **Exhibit 1** is true and correct copy of Vons's Standard Operating Procedures Regarding the Use and Review of Retail Job Applicants' Criminal Histories – California ("SOP"), Bates No. Vons (Carrillo) 000118 – 119.

3. On October 29, 2025, Plaintiff's counsel took the deposition of Vons's person most knowledgeable. Attached as **Exhibit 2** is a true and correct copy of that cover page, court reporter's certification, and relevant excerpts from that deposition transcript cited in Defendant's Opposition.

4. On November 21, 2025, my office served a spreadsheet to Plaintiff, Bates No. Vons (Carrillo) 000139 on Plaintiff. Attached as **Exhibit 3** is a true and correct copy of that spreadsheet, which has been converted to PDF to comply with the Court's filing requirements.

5. On November 21, 2025, my office served Second Supplemental Responses to Plaintiff's Interrogatories. Attached as **Exhibit 4** is a true and correct copy of those responses.

6. On October 23, 2025, I took Plaintiff's deposition. Attached as **Exhibit 5** is a true and correct copy of that cover page, court reporter's certification, and relevant excerpts from that deposition transcript cited in Defendant's Opposition.

7. Attached as **Exhibit 6** is true and correct copy of Plaintiff's background check disclosures, Bates No. Vons (Carrillo) 000017 – 30, which were served on Plaintiff on

LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

August 29, 2025, and were authenticated as Exhibit 9 at Vons's Rule 30(b)(6) deposition on October 29, 2025.

8. Attached as **Exhibit 7** is true and correct copy of the "Southern California Division Commitment to Legendary Service," Bates No. Vons (Carrillo) 000036, which was served on Plaintiff on August 29, 2025, and was authenticated as Exhibit 2 at Plaintiff's deposition on October 23, 2025.

9. Attached as **Exhibit 8** is true and correct copy of Plaintiff's Pre-Adverse Action Notice, Bates No. Vons (Carrillo) 000056, which was served on Plaintiff on August 29, 2025, and was authenticated as Exhibit 3 at Plaintiff's deposition on October 23, 2025.

10. Attached as **Exhibit 9** is true and correct copy of the purportedly mitigating information Plaintiff provided in response to his Pre-Adverse Action Notice, Bates No. PLAINTIFF 0538 - 0543, and was authenticated as Exhibit 4 at Plaintiff's deposition on October 23, 2025.

11. Attached as **Exhibit 10** is true and correct copy of Plaintiff's Adverse Action Notice, Bates No. Vons (Carrillo) 000058, which was served on Plaintiff on August 29, 2025, and was authenticated as Exhibit 6 at Plaintiff's deposition on October 23, 2025.

Plaintiff's Lack of Diligence in Discovery

12. On Wednesday, November 26, 2025 (the day before Thanksgiving) at 5:38 p.m., Plaintiff's counsel served Vons with a "Notice of Deposition of Person Most Qualified for One Source Technology LLC d/b/a Asurint." Plaintiff unilaterally served the notice without asking the Parties about availability for a deposition. On December 11, 2025, Vons agreed to extend the existing discovery deadline to allow the parties to meet and confer in good faith to complete Asurint's Rule 30(b)(6) deposition.

13. Vons's initial Requests for Production of Documents was due on September 5, 2025. Plaintiff did not serve them until September 8, 2025, and did not seek an extension from Vons.

14. Pursuant to the Court's First IDC Order (Dkt. 42), Plaintiff was required to serve supplemental responses to Vons's Requests for Production of Documents by October

LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

13, 2025. Plaintiff did not serve supplemental responses as ordered until October 22, 2025, the night before Plaintiff's deposition. Plaintiff did not seek an extension from Vons.

15. During the discovery phase of this case, Plaintiff sought sweeping discovery pertaining to entities that Plaintiff was not employed by. In particular, Plaintiff's Requests for Production of Documents 40 and 42 sought to define "The Vons Companies, Inc." to include different store employees that were not employed by Vons. In meet-and-confer efforts, counsel for Vons explained that Vons had already produced all documents that pertained to Vons and noted that Vons was the entity that Plaintiff sued. That meet-and-confer process had nothing to do with whether Vons uses Albertson's SOP, and Vons never denied a business relationship with Albertsons.

16. In Exhibit F attached to Vons's Request for Judicial Notice filed herewith, the probation officer indicated that Plaintiff's device was seized for further forensic examination. To date, Plaintiff has not produced that forensic report.

I declare under penalty of perjury under the laws of the State of California and the United States of America that the foregoing is true and correct.

Executed at San Diego, California on this 18th day of February 2026.

/s/ Karimah J. Lamar
Karimah J. Lamar

LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441

INDEX OF EXHIBITS

EXHIBIT	PAGE NO.
1	6
2	9
3	43
4	64
5	84
6	110
7	125
8	127
9	129
10	136

4913-6821-2872 / 116930.1061

LITTLER MENDELSON, P.C.
501 W. Broadway, Suite 900
San Diego, California 92101
619.232.0441